

24CMCV00087 24CMCV00087

County: los-angeles

Division: Civil Law and Motion

Department: E

Hearing date: 2026-08-04

Motion: MOTION FOR TERMINATING SANCTIONS OR, IN THE ALTERNATIVE, EVIDENTIARY, ISSUE AND MONETARY
SANCTIONS DATE: August 4, 2026 TIME: 8:30 A.M.

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Case Number: 24CMCV00087 Hearing Date: August 4, 2026 Dept: E

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES – SOUTH CENTRAL DISTRICT

JOHN SIMMONS, VONJELIQUE JOHNSON, SHEILA NUNEZ & RUTH RAMOS,

Plaintiffs,

vs.

LOS ANGELES UNIFIED SCHOOL DISTRICT, a public entity, and DOES 1 through 20, inclusive,

Defendants.

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CASE NO: 24CMCV00087

CONSOLIDATED WITH: 24CMCV00481

[TENTATIVE] ORDER RE: MOTION FOR TERMINATING SANCTIONS OR, IN THE ALTERNATIVE, EVIDENTIARY,
ISSUE AND MONETARY SANCTIONS

DATE: August 4, 2026

TIME: 8:30 A.M.

DEPT.: E

ANDRO RIVERA,

Plaintiff,

vs.

LOS ANGELES UNIFIED SCHOOL DISTRICT, LOS ANGELES COUNTY METROPOLITAN TRANSPORTATION
AUTHORITY; CITY OF LOS ANGELES; COUNTY OF LOS ANGELES; and DOES 1 to 100, inclusive,

Defendants

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Moving Party: Defendant Los Angeles Unified School District

Responding Party: None

Notice: Ok

Tentative Ruling: LAUSD's Motion for Terminating Sanctions is GRANTED.

I. BACKGROUND

This is a negligence action. Plaintiffs John Simmons, Vonjelique Johnson, Sheila Nunez, and Ruth Ramos ("Plaintiffs") allege that, on April 17, 2023, they were passengers of a Metro Bus No. 3968 when their bus was struck by a vehicle owned and/or operated by Defendant Los Angeles Unified School District ("LAUSD").

On January 22, 2024, Plaintiffs filed the instant suit LAUSD and Does 1 through 25 alleging a single cause of action for Negligence. negligence.

On February 5, 2025, this matter was related to Los Angeles Superior Court Case No.: 24CMCV00481 (Andro Rivera v. LAUSD, et al.). (See Minute Order, 2/5/25.) On March 17, 2025, the Court signed a stipulated order consolidating the instant matter and Case No.: 24CMCV00481, with the instant matter designated the lead case. (See Stipulation to Consolidate Actions and Continue Trial and Order, filed and signed 3/17/25.)

On December 10, 2025, the Court heard and granted in part LAUSD's Motion to Compel Attendant and Deposition Testimony of Plaintiff Andro Rivera and Request for Sanctions. (See Minute Order, 12/10/25.)

On February 26, 2026, the Court granted Rivera's Counsel's Motion to be Relieved as Counsel. (See Order Granting Attorney's Motion to be Relieved as Counsel – Civil, 2/26/26.)

On March 23, 2026, LAUSD filed a Motion for Terminating Sanctions Against Plaintiff Rivera or in the Alternative, Evidentiary, Issue and Monetary Sanctions Against Plaintiff Andro Rivera. (the "March 23rd Terminating Sanctions Motion").

Plaintiff did not oppose LAUSD's March 23 Terminating Sanctions Motion.

On April 28, 2026, the Court heard and denied the March 23 Terminating Sanctions Motion. (See Minute Order, 4/28/26.)

On July 6, 2026, LAUSD filed the instant Motion for Terminating Sanctions Against Plaintiff Rivera or in the Alternative, Evidentiary, Issue and Monetary Sanctions Against Plaintiff Andro Rivera.

As of August 1, 2026, no opposition or reply has been filed. Pursuant to Code Civ. Proc. § 1005(b), all papers opposing a noticed motion must be filed with the court and served on all other parties “at least nine court days ... before the hearing” and all reply papers at least five court days before the hearing. (Code Civ. Proc. § 1005(b).) Accordingly, any opposition or reply papers now filed are untimely, and the Court exercises its discretion to refuse to consider untimely filed papers. (Cal. R. Ct., Rule 3.1300(d); Mackey v. Bd. of Trustees of California State Univ. (2019) 31 Cal.App.5th 640, 657.)

II. ANALYSIS

A. Legal Standard

Code of Civil Procedure § 2023.030 gives the court the discretion to impose sanctions against anyone engaging in a misuse of the discovery process. Misuse of the discovery process includes failure to respond to an authorized method of discovery or disobeying a court order to provide discovery. (Code Civ. Proc., § 2023.010(d), (g).) Where a party fails to obey an order regarding discovery, “the court may make those orders that are just, including the imposition of an issue sanction, an evidence sanction, or a terminating sanction.” (Code Civ. Proc. §§ 2030.290(c), 2023.010(c); R.S. Creative, Inc. v. Creative Cotton, Ltd. (1999) 75 Cal.App.4th 486, 495 (“R.S. Creative”).) Terminating sanctions are appropriate when a party persists in disobeying a court’s orders. (Deyo v. Kilbourne (1978) 84 Cal.App.3d 771, 795-796 (“Deyo”); see also Code Civ. Proc. § 2023.030(d)(A court may impose terminating sanctions by striking pleadings of the party engaged in misuse of discovery or entering default judgment).)

However, a terminating sanction is a “drastic measure which should be employed with caution.” (Deyo supra, 84 Cal. App. 3d at 793.) “A decision to order terminating sanctions should not be made lightly. But where a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanction.” (Mileikowsky v. Tenet Healthsystem (2005) 128 Cal. App. 4th 262, 279-280.)

Courts generally recognize two factual prerequisites to the imposition of non-monetary sanctions for violation of court ordered discovery, including issue or evidence sanctions: (1) a failure to comply with a court order, and (2) such failure must be willful. (See R.S. Creative, supra, 75 Cal.App.4th at p. 496; Biles v. Exxon Mobil Corp. (2004) 124 Cal.App.4th 1315, 1327 (“Biles”); Liberty Mutual Fire Ins. Co. v. LcL Administrators, Inc. (2008) 163 Cal.App.4th 1093, 1102, citing Vallbona v. Springer (1996) 43 Cal.App.4th 1525, 1545; Deyo, supra, 84 Cal.App.3d at pp. 787-88 (“Lack of diligence may be deemed willful in the sense that the party understood his obligation, had the ability to comply, and failed to comply. [Citation.] ... A conscious or intentional failure to act, as distinguished from accidental or involuntary non-compliance, is sufficient to invoke a penalty.”) (internal citations omitted).)

The court should consider the totality of the circumstances, including conduct of the party to determine if the actions were willful, the detriment to the propounding party, and the number of formal and informal attempts to obtain discovery. (Lang v. Hochman (2000) 77 Cal.App.4th 1225, 1246.) If a lesser sanction fails to curb abuse, a greater sanction is warranted. (Van Sickel v. Gilbert (2011) 196 Cal.App.4th 1495, 1516.) However, “the unsuccessful imposition of a lesser sanction is not an absolute prerequisite to the utilization of the ultimate sanction.” (Deyo, supra, 84 Cal.App.3d at p. 787.) Before any sanctions may be imposed the court must make an express finding that there has been a willful failure of the party to comply with the discovery obligation. (Fairfield v. Superior Court for Los Angeles County (1966) 246 Cal.App.2d 113, 118.) Lack of diligence may be deemed willful where the party understood its obligation, had the ability to comply, and failed to comply. (Deyo, supra, 84 Cal.App.3d at p. 787; Fred Howland Co. v. Superior Court of Los Angeles County (1966) 244 Cal.App.2d 605, 610-611.) The party who failed to comply with discovery obligations has the burden of showing that the failure was not willful. (Deyo, supra, 84 Cal.App.3d at p. 788; Cornwall v. Santa Monica Dairy Co. (1977) 66 Cal.App.3d 250; Evid. Code §§ 500, 605.)

B. Discussion

LAUSD moves the Court for terminating sanctions for Rivera's willful failure to comply with his discovery obligations and for Rivera's failure to appear for deposition after the Court granted LAUSD's Ex Parte Application to compel Plaintiff's deposition. In the alternative, LAUSD requests the Court impose issue or evidentiary sanctions against Rivera.

In support of its motion, LAUSD sets forth the multiple times it has unsuccessfully noticed Plaintiff's deposition, amounting to eight times Plaintiff has either objected to being deposed or failed to appear for deposition. (See Martinez Decl., ¶¶ 3-10, 12, 18, Exhs. A-H, M.) Included in LAUSD's narrative are two times when Plaintiff did not serve any objections to the deposition date but simply failed to appear, first on March 17, 2026 and again on June 1, 2026. (Id., ¶¶ 13, 19, Exhs. H, N.) LAUSD also contends Plaintiff has now twice failed to comply with the Court's order to appear at deposition (see id., ¶¶ 13, 20) and accordingly requests the Court specifically order Plaintiff's action against Defendant dismissed with prejudice, arguing that Plaintiff's failure to participate in this litigation has resulted in unnecessary expenditure of time and resources and that Plaintiff's failure was a willful and deliberate violation of a Court Order.

Rivera does not oppose.

When deciding whether to impose terminating sanctions, courts generally weigh three factors: (1) whether the party subject to the sanction acted willfully, (2) the detriment to the party seeking discovery, and (3) the number of formal and informal unsuccessful attempts to obtain discovery. (Creed-21 v. City of Wildomar (2017) 18 Cal.App.5th 690, 702; Lang v. Hochman (2000) 77 Cal.App.4th 1225, 1246.)

Although the Court previously found the factual circumstances presented in the March 23 Terminating Sanctions Motion did not suffice to warrant terminating sanctions, the circumstances have changed. Rivera's initial failure to appear at the Court ordered deposition was not due to his own actions, but his failure to attend the June 1, 2026 deposition is in violation of the Court's Order and there appear to be no mitigating circumstances. The Court ordered Rivera to appear for his deposition on June 1, 2026 (see Minute Order, 5/22/26) and Rivera was given notice of the Court's Order (see Notice of Ruling, filed 5/22/26; see also Martinez Decl., ¶ 18, Exh. M), but Rivera did not sit for his deposition on June 1 as was ordered. (Martinez Decl., ¶ 19, Exh. N.) Compounding Rivera's failure to appear for his deposition is the lengthy history of his prior failures to appear for the seven previously noticed depositions (making the last failure to appear his eighth). (See Martinez Decl., ¶¶ 3-10, 12, 18, Exhs. A-H, M.) Upon review of the Court's records and LAUSD's supporting evidence, the Court finds that Rivera: (1) understood both his obligation to sit for a deposition in general and his obligation to comply with the Court's Order to appear for his deposition; (2) had the ability to comply with the Court's Order; and (3) willfully failed to comply. The Court further finds that Rivera's willful failure to comply with his discovery obligations and the Court's Order renders LAUSD unable to properly evaluate Rivera's claims and meaningfully present a defense. Given that the Court's earlier orders compelling Rivera's compliance and imposing monetary sanctions have had no effect on Rivera's willingness to sit for his deposition, the Court finds that lesser sanctions will not curb Rivera's discovery abuse.

III. CONCLUSION

In accordance with the above, LAUSD's Motion for Terminating Sanctions is GRANTED. Rivera's Complaint is ordered dismissed with prejudice.